

CHAPTER 29.

An Act to alter the form of the Declaration required to be made by the Sovereign on Accession.

[3rd August 1910.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Alteration of
form of
accession
declaration.
1 Will. & Mary
Sess. 2. c. 2.
12 & 13 Will. 3.
c. 2.
Short title.

1. The declaration to be made, subscribed, and audibly repeated by the Sovereign under section one of the Bill of Rights and section two of the Act of Settlement shall be that set out in the Schedule to this Act instead of that referred to in the said sections.

2. This Act may be cited as the Accession Declaration Act, 1910.

SCHEDULE.

I [*here insert the name of the Sovereign*] do solemnly and sincerely in the presence of God profess, testify, and declare that I am a faithful Protestant, and that I will, according to the true intent of the enactments which secure the Protestant succession to the Throne of my Realm, uphold and maintain the said enactments to the best of my powers according to law.

CHAPTER 30.

An Act to amend the provisions of the Agricultural Holdings (Scotland) Act, 1908, with respect to way-going valuations.

[3rd August 1910.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Amendment
of the Agri-
cultural
Holdings
(Scotland)
Act, 1908.
8 Edw. 7. c. 64.

1. Notwithstanding anything in section eleven of the Agricultural Holdings (Scotland) Act, 1908, contained, that section shall not apply to valuations of sheep stocks, dung, fallow, straw, crops, fences, and other specific things the property of an outgoing tenant, agreed under a lease to be taken over from him at the determination of a tenancy by the proprietor or incoming tenant, or to any questions which it may be necessary to determine in order to ascertain the sum to be paid in pursuance of such agreement ; and that whether such valuations and questions are referred to arbitration under the lease or not.

2. This Act may be cited as the Agricultural Holdings (Scotland) Amendment Act, 1910, and this Act and the Agricultural Holdings (Scotland) Act, 1908, shall be read and construed as one Act, and may be cited together as the Agricultural Holdings (Scotland) Acts, 1908 and 1910. Short title and construction.

CHAPTER 31.

An Act to amend the Law of Scotland relating to Jury Trials in Civil Causes. [3rd August 1910.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. The words, "and, except upon special cause shown not later than three weeks from the date of such motion" occurring in section forty of the Court of Session (Scotland) Act, 1850, are hereby repealed. Repeal.
13 & 14 Vict.
c. 36.

2. If, after hearing parties upon (a) a rule to show cause why a new trial should not be granted in terms of section six of the Jury Trials (Scotland) Act, 1815, on the ground that the verdict is contrary to evidence, or (b) an appeal in terms of head (2) of section thirty-one of the Sheriff Courts (Scotland) Act, 1907, the Court are unanimously of opinion that the verdict under review is contrary to evidence, and, further, that they have before them all the evidence that could be reasonably expected to be obtained relevant to the cause, they shall be entitled to set aside the verdict and, in place of granting a new trial, to enter judgment for the party unsuccessful at the trial. Cases where Court may set aside verdict.
55 Geo. 3. c. 42.
7 Edw. 7. c. 51.

3. The Court of Session may from time to time make such regulations by Act of Sederunt as shall be necessary for carrying into effect the purposes of this Act. Power to make regulations.

4. This Act may be cited as the Jury Trials Amendment (Scotland) Act, 1910. Short title.

CHAPTER 32.

An Act to amend the Law respecting the Authentication of Extracts under the Acts relating to the Registration of Births, Deaths and Marriages in Scotland.

[3rd August 1910.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :